

Court No. - 32

Case :- WRIT - C No. - 41079 of 2019

Petitioner :- Jai Pal Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Shiv Mangal Pandey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ravi Nath Tilhari,J.

Sri Abhishek Dwivedi, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department prays for and is granted three days' time to seek instructions in the matter.

Put up as fresh on 18.12.2019.

Order Date :- 12.12.2019

vinay

Court No. - 32

Case :- WRIT - C No. - 41079 of 2019

Petitioner :- Jai Pal Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Shiv Mangal Pandey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Shamim Ahmed,J.

Put up this matter as fresh on 7.1.2020.

Till then no coercive measures shall be taken against the petitioner.

Order Date :- 18.12.2019

MLK

Court No. - 32

Case :- WRIT - C No. - 41079 of 2019

Petitioner :- Jai Pal Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Shiv Mangal Pandey

**Counsel for Respondent :- Ashutosh Dwivedi,
Baleshwar Chaturvedi**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(A) Issue a writ, order or direction in the nature of certiorari quashing the recovery certificate dated 30.05.2019 passed by respondent no. 2 contained as Annexure No. 4 of the writ petition.

(B) Issue a writ, order or direction the nature of mandamus to respondent no. 3 not to adopt any coercive method in pursuance of recovery certificate dated 30.05.2019 sent by respondent no. 2. "

Heard learned counsel for the petitioner, Mr. Baleshwar Chaturvedi, learned counsel appearing on behalf of the Electricity Department and perused the record.

At the very outset, learned counsel appearing on behalf of the Electricity Department has stated that the petitioner has got an alternative remedy under Clause 6.5 of the U.P. Electricity Supply code, 2005 to ventilate his grievance.

The learned counsel for the petitioner has not been able to rebut the contention made by the learned counsel for the Electricity Department.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the concerned authority for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within a period of four weeks thereafter.

For a period of 6 weeks, the impugned recovery certificate/citation dated 30.05.2019 issued by the respondent no. 2 shall remain in abeyance.

It is made clear that this Court has not expressed any opinion with regard to the merit of the case. The authority concerned shall consider the matter on its own merits.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 7.1.2020

Arun